

1. The Motion for Spouse Wage Garnishment is GRANTED.
2. Upon issuance of writ of execution herein by the Court and the Judgment Creditor's filing of an Application for Earnings Withholding Order and related papers, the levying officer is directed to issue the subject wage garnishment as to Timothy Brainerd.
3. The Court shall issue the order after hearing.

14. 9:00 AM CASE NUMBER: MSC20-00156
CASE NAME: ADELPHOS VS BAY AREA ELEVATOR
***HEARING ON MOTION IN RE: RELEASE OF INTERPLEAD FUNDS**
FILED BY: ADELPHOS, LLC, A LIMITED LIABILITY COMPANY
TENTATIVE RULING:

Plaintiff Adelphos, LLC ("Plaintiff") filed a Motion for Release of Interpleaded Funds on September 17, 2025 (the "Motion for Release of Interpleaded Funds"). The matter was set for hearing on February 2, 2026.

Background

Plaintiff filed its Complaint on January 27, 2020 alleging various causes of action against the name defendants. A Notice of Settlement of Entire Case was filed February 21, 2025.

Plaintiff's motion is made on the grounds that Plaintiff has settled and dismissed all claims against all defendants that have appeared in this matter, no adverse claimants remain, and Plaintiff is the sole party entitled to the funds. See Declaration of Brian M. Junginger filed September 17, 2025, ¶¶2-5.

Analysis

The Motion for Release of Interpleaded Funds is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion for Release of Interpleaded Funds is GRANTED.
2. Plaintiff to submit a proposed form of order after hearing.

15. 9:00 AM CASE NUMBER: MSC21-02364
CASE NAME: HOOKER VS. MICHAEL C. STEAD INC.
***HEARING ON MOTION IN RE: STRIKE, OR IN THE ALTERNATIVE, TAX COSTS.**
FILED BY:
TENTATIVE RULING:

Defendant Kia America, Inc. ("Kia") filed a Motion to Strike, or in the Alternative, Tax Costs on July 22, 2025 (the "Motion to Tax Costs"). The Motion to Tax Costs was initially set for hearing on October 20, 2025. Plaintiff Eric Hooker ("Plaintiff") separately filed a Motion for Attorney's Fees, Costs and Expenses

on July 3, 2025 (the “Motion for Fees and Costs”). The Motion to Tax Costs was continued several times along with the Motion for Fees and Costs. That motion is addressed in a separate tentative ruling issued by the Court. The Motion to Tax Costs is currently set for hearing on February 2, 2026, along with the Motion for Fees and Costs. The motion is opposed.

Background

As against Kia, this matter was resolved by way of a settlement agreement between the Plaintiff and Kia. See Compendium of Exhibits filed July 3, 2025 (“Plaintiff’s Exhibits”), **Exhibit 2**. Among the terms was a settlement payment of \$22,500 payable to Plaintiff by Kia. *Id.* at p. 3. The agreement also stipulates that Plaintiff is the prevailing party and provides for recovery of attorneys’ fees “reasonably and necessarily incurred by Plaintiff in connection with the commencement and prosecution of the Action.” *Id.* at pp. 4-5.

The Motion to Tax Costs is supported by the Declaration of Corinne D. Orquiola filed as part of the Motion to Tax Costs (the “Supporting Declaration”).

Plaintiff filed an Opposition on October 7, 2025, along with the Declaration of Christopher P. Barry (“Barry Decl. re Costs”) and Compendium of Exhibits (“Opposition Exhibits”) filed that same date. The Opposition Exhibits included Exhibits 1 through 25 with supporting documentation in connection with the costs claimed. See Opposition Exhibits, **Exhibits 1-25**.

Kia filed a Rely on October 13, 2025.

Analysis

When awarding costs, a court must apply the following principles: (1) costs are allowable if incurred, whether or not paid; (2) allowable costs must be reasonably necessary to the conduct of the litigation, not merely convenient or beneficial to its preparation, and (3) allowable costs must be reasonable in amount. See CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) (“CJER Civ. Pro.—Trial”), § 16.17; see Code Civ. Proc. § 1033.5. If the items on a verified memorandum of costs appear to be proper charges, the memorandum is prima facie evidence of their propriety and the burden is on the party contesting them to show that they were not reasonable or necessary. *Hooked Media Group, Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323, 338; see CJER Civ. Pro.—Trial, § 16.18. Moreover, Plaintiff is entitled to recover expenses beyond those allowable in Code of Civil Procedure section 1033.5, by virtue of, at the very least, the parties’ settlement agreement.

Plaintiff’s Motion for Fees and Costs was supported by a filed memorandum of costs. See Compendium of Exhibits filed July 3, 2025, **Exhibit 4** [Memorandum of Costs (Summary) and Worksheet] (the “Memorandum of Costs”). The Memorandum of Costs was verified under penalty of perjury. *Id.* The Memorandum of Costs reflects total incurred costs of \$22,612.08 across six categories, including \$14,503.43 in “Other” costs that are itemized in Attachment 16.

Plaintiff has withdrawn a \$129.95 item for service of a subpoena erroneously double billed and a \$32.16 for a shipping cost. See Opposition, p. 1. Those amounts total \$162.11. \$22,612.08 less \$162.11 totals \$22,449.97, the amount Plaintiff now seeks. *Id.*

Kia’s Opposition asks the Court to strike all of the costs because the initial submittal by Plaintiff contained “no evidence” to support the costs claimed. That is wrong. The verified Memorandum of Costs is prima facie evidence of the validity of the costs. Moreover, Plaintiff has submitted further submitting documentation as part of the Opposition Exhibits.

Kia contends that Plaintiff cannot recover costs “against the settling defendants who have already included costs in their settlement.”

First, costs are not incurred “against” any particular defendant or defendants. Costs may be incurred in connection with the conduct of the litigation as relates to issues involving certain parties. The broad assertions by Kia fail to demonstrate that any given costs related to the conduct of litigation that did not relate to the prosecution of the case in any way as relates to Kia.

Second, the Settlement Agreement bound Kia to pay “Plaintiff’s costs and expenses.” See Agreement, pp. 4-5, Plaintiff’s Exhibits on the Motion for Fees and Costs, **Exhibit 2**. This agreement certainly could have limited the recovery of costs to those incurred in connection with litigating the case as relates to Kia or imposed on recovery of costs incurred in the period before March 7, 2023. It did not. *Id.*

The Court makes the further determinations set forth below regarding the challenged costs and expenses.

Item 1 (\$435.00). Kia’s Motion to Tax Costs is DENIED as to this item. The Court finds that this is an allowable cost which was necessary to the conduct of the litigation and reasonable in amount.

Item 5 (\$2,711.20). Kia’s Motion to Tax Costs is GRANTED as to the \$129.95 duplicative item conceded by Plaintiff and otherwise DENIED.

Item 16 (\$14,504.43).

Filing of Writ. Kia’s Motion to Tax Costs is GRANTED as to \$819.25 cost for the “Filing of Writ.”

Shipping Costs. Kia’s Motion to Tax Costs is GRANTED as to (1) the \$90.53 Federal Express shipping cost to “serve the court with the writ,” and (2) the \$39.92 Federal Express shipping cost to “to ship the writ to LegalConnect.”

The Court finds that the balance of the claimed costs and expenses are either allowable costs and/or recoverable expenses, all of which were necessary to the conduct of the litigation and reasonable in amount.

The total stricken or reduced costs and/or expenses total \$1,111.81. Deducting this amount from the claimed costs and expenses leaves recoverable total costs and expenses in the amount of \$21,500.27, which amount the Court finds to be the total recoverable costs of suit.

Disposition

The Court finds and orders as follows:

1. The Motion to Tax Costs is GRANTED IN PART and DENIED IN PART, as set forth above.
2. Plaintiff is awarded and shall recover from Kia costs of suit in the sum of \$21,500.27.
3. Plaintiff to prepare a proposed form of order after hearing. A single form of order shall be prepared with the Court’s ruling on both the Motion to Tax Costs and the Motion for Fees and Costs.

16. 9:00 AM CASE NUMBER: MSC21-02364
CASE NAME: HOOKER VS. MICHAEL C. STEAD INC.
*HEARING ON MOTION IN RE: ATTORNEY'S FEES, COSTS, AND EXPENSES
FILED BY:
TENTATIVE RULING:

Plaintiff Eric Hooker ("Plaintiff") filed a Motion for Attorney's Fees, Costs and Expenses on July 3, 2025 (the "Motion for Fees and Costs"). Plaintiff seeks an award of \$253,891.00 in attorneys' fees and \$22,612.08 in costs as against defendant Kia America, Inc. ("Kia"). The Motion for Fees and Costs was initially set for hearing on October 20, 2025. The motion was continued several times, most recently to permit the filing of a sur-reply. The motion is currently set for hearing on February 2, 2026. The motion is opposed.

Background

As against Kia, this matter was resolved by way of a settlement agreement between the Plaintiff and Kia. See Compendium of Exhibits filed July 3, 2025 ("Plaintiff's Exhibits"), **Exhibit 2**. Among the terms was a settlement payment of \$22,500 payable to Plaintiff by Kia. *Id.* at p. 3. The agreement also stipulates that Plaintiff is the prevailing party and provides for recovery of attorneys' fees "reasonably and necessarily incurred by Plaintiff in connection with the commencement and prosecution of the Action." *Id.* at pp. 4-5.

The Motion for Fees and Costs is supported by the Declaration of Brianna A. Means filed on July 3, 2025, the Declaration of Michelle A. Cook filed on July 3, 2025, the Declaration of Gregory T. Babbitt filed on July 3, 2025, and the Declaration of Christopher P. Barry ("Barry Decl.") filed on July 3, 2025 (collectively, the "Supporting Declarations").

The Declaration of Christopher P. Barry describes the firm's billing practices and provides an overall summary of the total billed hours, the hourly rates by timekeeper and the total amount billed (\$253,891.00) with a breakdown by timekeeper. See Barry Decl., ¶13.

The declaration further breaks down the billings by categories and phases of litigation related tasks. See *id.* at ¶14 *et seq.* This includes items such as "158.1 hours/\$66,699.00" for discovery related work, "18.7 hours/\$8,415.00" for writ proceedings (regarding "drafting a writ to challenge the trial court's ruling on a demurrer filed by Kia."), and "322.9 hours/\$148,762.00" attributed to "Litigation/Trial" related matters. *Id.* Plaintiff proffers historical information regarding other litigated matters and billing rates approved in such matters. See *id.* at ¶17 *et seq.*

Mr. Barry's declaration and the other submitted Supporting Declarations detail the billing attorneys' and paralegals' background and professional experience, and provide information regarding their roles and work in the case.

Kia filed an Opposition on October 7, 2025, along with a set of Evidentiary Objections filed that same date ("Kia's Objections").

Plaintiff filed a Rely on October 13, 2025, along with a supplemental Declaration of Christopher P. Barry on the same date ("Supp. Barry Decl."). That supplemental declaration attaches a spreadsheet of detailed billing time entries. Supp. Barry Decl., **Exhibit 1**.

Kia filed a second set of Evidentiary Objections ("Kia's Further Objections"). Kia's Further Objections were resolved by the Court granting a continuance of the hearing and permitting Kia to file a sur-reply.